

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
 Case No. CV2026-0240

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

While plaintiff Shannon Hendrix timely filed his opposition on March 17, 2026, he did not timely serve the opposition on defendant eBay Inc. (Code Civ. Proc., § 1005, subds. (b) & (c) [“all papers opposing a motion...shall be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers...are filed”]; Miller decl. ISO reply, ¶¶ 5, 11.) However, despite this untimely service, the Court, in its discretion, consider plaintiff’s opposition. (See *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

As the Court is considering plaintiff’s opposition, on its own motion, the Court **CONTINUES** defendant eBay Inc.’s motion to compel arbitration and stay action to **April 28, 2026**, at 9:00 a.m. in Department Fourteen. Defendant may file an amended reply in support of its motion by **April 8, 2026**. (See Code Civ. Proc., § 1005, subd. (b).)

TENTATIVE RULING

Case: **Magallon v. Solorzano**
 Case No. CV2023-2182

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Reyna Magallon and Esequiel Pena’s unopposed motion to strike defendant Francisco Solorzano’s answer or, in the alternative, issue sanctions against defendant and his counsel of record is **GRANTED IN PART**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2033.290.) As an initial matter, the Court does not consider whether to impose terminating sanctions because plaintiffs’ notice of motion fails to specify that plaintiffs seek terminating sanctions. (Code Civ. Proc., § 2023.040 [“A request for a sanction shall, in the notice of motion...specify the type of sanction sought”].)

The Court finds that defendant Francisco Solorzano and his counsel (Harry Roth) misused the discovery process by failing to pay the sanction as ordered by the Court on September 16, 2025. (Code Civ. Proc., § 2023.010, subd. (g); Seuthe decl., ¶ 6, Exhibit C.) As this Court takes an incremental approach to sanctions and plaintiffs provided evidence that defendant and/or his counsel violated only one court order, this Court imposes monetary sanctions but declines to impose issue or evidentiary sanctions. (Code Civ. Proc., § 2023.030, subds. (a)-(c); *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604; Seuthe decl., ¶¶ 2-8, Exhibit A-C.) The Court orders monetary sanctions, in the amount of **\$1,560.00**, against defendant and defendant’s counsel. (Code Civ. Proc., §§ 2023.010, subd. (g), 2023.030, subd. (a); Seuthe decl., ¶ 9.) The Court declines to award sanctions for time not yet incurred. Defendant and defendant’s counsel must pay the sanction by **May 1, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.